Our ref: REIV6422
Your ref:

20 March 2023

By Email: Pascal.MOUSSA@ndiscommission.gov.au

Attention: Ms Pascal Moussa
PO Box 210
PENRITH NSW 2750

Dear Ms Moussa

Allegations against Forward Focussed Group
Submission for s100 internal review

We refer to the above matter and to your correspondence dated 20 December 2022 and email on 21 February 20223 in relation to providing a submission in relation to the internal review of the banning order for Forward Focused Group ('**FFG**').

We confirm that we act for Forward Focussed Group ('**Client**') in this matter.

We welcome and thank the NDIS Commission ('**Commission**') for the opportunity to provide a submission for the internal review of the banning order.

BACKGROUND

On 19 October 2022, the Commission wrote to our Client, offering the opportunity to make a submission on a proposed revocation of registration and a banning order. The Commission provided a closing date for the submission of 16 November 2022. On the same date, the Commission wrote to our Client advising that the registration of FFG had been suspended for 30 days.

By 31 October 2022, our Client had engaged us to act on their behalf. Therefore, on 31 October 2022, we wrote to the Commission requesting full disclosure of the information that the Commission relied upon for the proposed revocation of registration and banning order. We also requested an extension of time of 28 days from the date disclosure would be provided. Given the extensive list of allegations, the lack of detail regarding these allegations and only two weeks for us to reply, this request was not considered unreasonable. An extension to 30 November 2022, a further two weeks, was given by the Commission.

On 30 November 2022, we wrote to the Commission with a response to each allegation in turn.

On 20 December, the Commission formally revoked the registration of FFG and issued a banning order.

RESPONSE TO ALLEGATIONS

1. *(3) It is alleged that the Provider is providing supports to participants that the provider is not registered to provide. The Forward Focused Group website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offered SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focused Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.*

We provided further evidence to the Commission supporting our Client's position. It appears from the statement above that the Commission has not taken into consideration this information when determining the banning order. No mention of the information provided by our Client was acknowledged.

Our Client promoted SDA housing on their website. It promoted a business relationship between our Client and the primary SDA provider. This amounts to advertising at most. There is no evidence to support the allegation that our Client engaged in the delivery of these services or breached their registration conditions. No information has been provided to us by the Commission on any other activity relating to the alleged breach regarding SDA other than this advertising.

2. *(4) Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that the Provider does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from the Provider or the key personnel.*

The Commission has not provided the details of these "*over 30 complaints*" so that we could respond fully. If the Commission is relying on complaints that were not disclosed to issue the banning order to our Clients, then this is procedurally unfair. Additionally, it has not been disclosed how many of these complaints have been substantiated.

It is concerning the Commission is relying on "*suggests*" rather than evidence to support this allegation and the issuing of the banning order.

As to the allegation that FFG does "*not support individuals to raise any complaints they may have directly with the provider*", we have not been provided with any particulars that have been given on what complaints and what individuals the Commission is referring to. As such, this placed our Client in a position where they were unable to respond to the allegation and could only provide a general answer. A determination to issue a banning order based on this allegation is procedurally unfair.

3. *(5) This information strongly indicates that the Provider does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.*

We provided evidence to the Commission supporting our Client's position that an extensive suite of internal policies and supporting documents existed. This demonstrated that our Clients had a strong complaints management and resolution system in place. It appears from the statement above that the Commission has not taken into consideration this information when making a determination on the banning order. No mention of the information provided by our Client has been acknowledged.

4. *(6) The Commission holds information that the Provider does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section stated that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does not hold any records of contact information or worker screening conducted for Ms See.*

We provided information to the Commission that Ms See was registered with the Psychotherapy and Counselling Federation of Australia ('**PCFA'**). Additionally, we pointed out the 2018 NDIS Registration Guidelines advised that only registration with ACA (or an equivalent) was required to provide services. Our Clients submitted that the PCFA is the equivalent agency to the ACA. However, the Commission has not acknowledged this information provided nor commentary on why this was not accepted.

5. *(7) The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sought to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,*

- *a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".*
- *b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.*
- *c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, "we will no longer pay any invoices for Sarah. She has terminated her contract with us."*
- *d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.*
- *e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."*
- *f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".*

This allegation states that it includes the participants listed in clauses 'a-f' above. As the Commission has not provided all the information on the allegations, we have been unfairly disadvantaged in that we were unable to provide a response to *all* allegations. Of those names

listed in this allegation, we provided information that showed the true circumstances of the situation. It appears the Commission is relying on partial information to support this allegation which has been taken out of context. Again, the information we provided to the Commission has not been acknowledged, nor has any commentary been provided on why it was not accepted.

6. **(***8) The Commission holds information that the Provider is not acting with integrity, honesty and transparency.*

The information relied upon by the Commission in support of this allegation relates to alleged false claims for payments. This allegation is currently before the criminal courts. Importantly, disclosure (as required by criminal law) has not been served in relation to these allegations.

Requesting our Client to provide a detailed response to false claims for payment, knowing that it is currently before the Court, is, in our view, inappropriate and compromises our Client's legal defence. We requested that the banning order (based on the alleged false claims) not be taken into consideration at this time until the Court proceedings were completed. It is disappointing that the Commission has determined to make this finding knowing the evidence is still to be tested in court.

7. *(9) It is alleged that Forward Focused Group knowingly submitted false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.*

As per the above paragraphs, requesting our Client to provide a detailed response to these allegations, knowing that it is currently before the Court, is, in our view, inappropriate and compromises our Client's legal defence. Further, based on the Commission's commentary of 'knowingly submitted [*sic*] false claims,' the Commission has already pre-determined our Client's guilt without the evidence being tested in Court.

Our concern, inter alia, for our Client is the linkage of the banning order to Ms Vida Reid's criminal proceedings in the event that she is acquitted. We consider the Commission's position to be biased, procedurally unfair and impinge on our Client's rights. Furthermore, the banning order would unjustifiably penalise our Client after the conclusion of the court matter. As such, it would have been prudent for the Commission to maintain our Client's suspension instead of a banning order.

8. (*10) The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.*

We further reiterate that requesting our Client to provide a detailed response to these allegations, knowing that it is currently before the Court, is, in our view, inappropriate and compromises our Client's legal defence.

9. (*11) The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,*

a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

Requesting our Client to provide a detailed response to these allegations, knowing that it is currently before the Court, is, in our view, inappropriate and compromises our Client's legal defence.

10. (*12) The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,*

a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

We provided information to the Commission in response to this allegation, including long emails between a number of people that showed the true situation. It appears that the Commission has not made any inquiries relating to this information we provided and is instead reverting to the original information held. No information has been provided as to why our response was not accepted.

11. *(13) The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.*

In the Commission's letter dated 20 December 2022, this allegation was supported by allegation (*14*) below. That is, allegations (13) and (14) were one. By the Commission now separating this allegation into two distinct parts, and judging our Client on our previous response, is unfair. Allegation (13) above provides no information as to what behaviour our Client has engaged in. In fact, it provides a generalised statement only. As this is a completely new allegation, our Client has not been given an opportunity to respond to this allegation. The Commission's management of this allegation is procedurally unfair to our Client.

12. *(14) The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,*

a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

This allegation related to "… by way of example … Meghan Goodwin". The Commission has only provided Ms Goodwin as an example and has not disclosed any other NDIS participant as the subject of this allegation. If the Commission is relying on other evidence to support this claim, then in the interests of procedural fairness, our Client should be given an opportunity to respond.

For the avoidance of doubt, we have provided a response to the allegation regarding Meghan Goodwin. However, it must be noted that our Client has not been given any information to

provide a response in relation to other participants; this conflict infringed on our Client's rights to procedural fairness.

13. *(15) The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).*

The Commission has not provided information that was relied on in support of the allegation that our Client '*has contravened, is contravening, or is proposing to contravene the NDIS Act*'. As such, and without the requested documents, it was difficult to formulate a comprehensive response to satisfy the Commission that our Client should not be banned from holding an NDIS registration. By not providing this information, our Client was not able to provide a detailed response.

14. *(16) The NDIS Act s73J requires providers to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA).*

We refer to the abovementioned response to paragraph 1.

15. *(17) The Provider is clearly advertising the provision of supports that you are not registered to supply.*

This also relates to (3) above. Issuing a banning order based on a marketing concept is inappropriate and procedurally unfair. The Commission has exceeded its legislative authority in issuing a banning order for advertising material.

16. *(18) The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.*

Requesting our Client to provide a detailed response to these allegations, knowing that it is currently before the Court, is, in our view, inappropriate and compromises our Client's legal defence.

17. *(19) The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.*

Requesting our Client to provide a detailed response to these allegations, knowing that it is currently before the Court, is, in our view, inappropriate and compromises our Client's legal defence.

18. *(20) The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. Our view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.*

We refer to the abovementioned paragraph 3 response.

19. *(26) I have carefully considered the information provided in your submissions alongside previous information outlined in the letter dated 19 October 2022. I note your submission does not provide the Commission with additional evidence to support your position.*

Our Client was willing to provide information on matters that do not relate to the criminal trial. However, our requests for further disclosure on the items relied upon by the Commission have been denied. In the Commission's letter dated 15 November 2022, it was advised that the Commission was "*satisfied that our notices of 19 October adequately disclosed the reasons and information that gave rise to our intentions*".

We had respectfully asked for further information as we could **not** provide a detailed response on behalf of our Client without it, for which our Client is now being penalised.

As expressed in our letter to you dated 30 November 2022, the claims made by the Commission are narrowly viewed based on an illogical and irrational conclusion that was based on biased and, in some cases, factually incorrect information.

We further suggested that the suspension of our Client's registration should be continued as "*it is just and reasonable to do so*" whilst the criminal proceedings were still being determined. No consideration has been given to this reasonable and sound request.

20. *(30) Our view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in continuing to provide supports or services to people with disability.*

As mentioned above, we requested that the suspension order continue until the criminal matters were concluded. Adopting this approach would have protected the interests of ALL parties, including people with disabilities and our Client.

21. *(31) The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.*

We are concerned that the Commission has not considered or made any further inquiries regarding the information we provided. Further, the Commission is relying on information that is currently before the court and, as such, is penalising our Client twice for the same allegation.

22. *(32) The information before me in relation to the protracted length of time over which this conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants, suggests that Provider's conduct was systemic in nature.*

When putting the allegations to our Client, the Commission has used words such as "suggests", "indicates", and "holds information". It is disappointing that the Commission is not relying on evidence but rather gossip and innuendo. There is no evidence to show that our Clients conduct was inappropriate or, indeed, systemic.

23. *(33) I am also of the view that allowing the Provider to continue providing supports or services to people with disability would jeopardise public trust in the NDIS.*

As mentioned above, we requested the suspension order to remain in place until the criminal proceedings were concluded. Adopting this approach would not have jeopardised public trust in the NDIS.

24. *(37) For the avoidance of doubt, the Banning Order will prevent the Provider from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS-funded supports and services to people with disability.*

(38) I consider that a timeframe of 10 years is appropriate and will provide a strong level of protection for people with disability.

We are concerned with the arbitrary nature of this decision. In the event that a not guilty verdict is reached with respect to the criminal matter, a banning order will still be in place even though the evidence did not support the charges. A continuation of the suspension order is a more appropriate outcome at this time.

Relevant policies and guidelines

The NDIS Quality and Safeguards Commission Compliance and Enforcement Policy ('**policy'**) acknowledges that a

> *banning order is one of the most serious regulatory responses to prevent a person from providing supports or services in the NDIS market. It is intended to apply to an NDIS provider or person employed or otherwise engaged by an NDIS provider in circumstances where it is the most appropriate regulatory option available to prevent people with disability from experiencing harm arising from poor quality or unsafe services provided under the NDIS*.

As per our comments above, there were other options available to the Commission, such as continuing the suspension order rather than issuing a banning order at this time. As such, it is our view that the Commission has not followed policy.

Additionally, the National Disability Insurance Scheme (Procedural Fairness) Guidelines 2018 (Cth) ('**guidelines**') are of significance in this case.

Clause 7(1) states in part that: -

> *(1) …procedural fairness must be afforded to a person if their rights or interests may be adversely or detrimentally affected in a direct and specific way'…*
>
> *…*
>
> *(d) the decision maker should be unbiased and maintain an unbiased appearance.*
>
> *…*
>
> (4) *The obligation to provide procedural fairness must be balanced against the need to ensure that neither a complainant (including a person with disability) nor a person with disability affected by an issue raised in a complaint is disadvantaged as a result of the complaint being made and resolved.*

Section 5 of the *Interpretation Act 1984* provides that 'person' includes a public body, company, or association or body of persons, corporate or unincorporated. As such, clause 7(1) above applies to our Client.

It is our view that we have identified the action of the Commission not affording procedural fairness has not been afforded to our Client. Our Client has been adversely and detrimentally

affected by the Commission issuing a banning order. In accordance with the guidelines, our Client should have been afforded fairness.

Taking into consideration subclause 7(4), providing procedural fairness to our Client would not have disadvantaged any person who was the subject of an allegation. Our Client was entitled to be given a fair opportunity to respond to **all** allegations against them, and not just "*by way of example…".* Regardless, our position was to seek to keep the suspension order in place. This approach would not have compromised any person and was a fair, reasonable, and proportional request, given the insufficient information provided by the Commission.

Clause 8 of the guidelines, '**Procedural fairness and other legal requirements**' states that:-

(1) *…The central purpose of those requirements is to ensure fairness for all involved parties.*

The Commission's approach in dealing with this matter has not ensured procedural fairness for our Client.

Clause 13 of the guidelines state, in part, that:-

…

(5) ***The dual purpose of procedural fairness:*** *Procedural fairness is a legal obligation that applies to decisions made under statute that adversely affect the interests of others in a direct and specific manner. A failure to comply with this legal obligation may lead to an adverse decision being set aside by a court or questioned by a review tribunal or body.*

(6) As importantly, procedural fairness aims to strengthen the fairness and integrity of administrative processes, regardless of whether legal proceedings for a breach are a possibility. Decision-makers should, accordingly, ensure procedural fairness in the pursuit of good administration as an overriding objective.

It is our view that the Commission has failed to provide our Client with procedural fairness. We have requested information in order to provide our submission, which has been denied, we have asked for the continuation of a suspension order, which has been denied, and we have provided names of witnesses who can support our position for some of the allegations which have not been followed up.

It is concerning that the Commission continues to rely upon matters that are the subject of criminal proceedings to issue the banning order. The Commission's conduct in seeking responses with respect to the criminal proceedings clearly disadvantages our Client.

It is inappropriate to comment on the ongoing criminal proceedings while the matter is still before the Courts, and as such, this request by the Commission is not aligned with the Commonwealth Prosecution Policy.

It is worthwhile acknowledging here that our Client is being penalised twice for the same alleged offences – one is in the criminal courts, and the other is through this banning order. We consider the Commission's approach to having a 'bet each way' inappropriate and in conflict with recognised procedural fairness guidelines and the Commonwealth Prosecution Policy.

In summary

The Commission has not provided any procedural fairness to our Clients through this banning order process. Additionally, the Commission has not abided by the NDIS policy or guidelines, nor the Commonwealth Prosecution Policy.

We understand that the Commission is required to protect the rights of vulnerable people; however, it is also important to acknowledge that our Client was not providing any NDIS services due to a suspension notice being in place. No reasons have been provided by the Commission in relation to why our suggestion of the suspension order continuing was not considered.

This banning order should be based on evidence and a full investigation rather than on innuendo, suggestions and a biased view of the information held by the Commission.

Our Client is not unreasonable and wanted to work with the Commission on reaching an outcome that was appropriate and fair to all involved. However, our Client has been treated dismissively throughout this whole process.

Our Client is seeking the Commission to reconsider the banning order and instead issue a suspension notice until the criminal matters are resolved.

Kind regards

Tom & Co Legal

Tom & Co Legal